HEADNOTE

"1. The infringement action and the counterclaim for revocation are separate actions under the UPCA and Rules of Procedure. Making the counterclaim for revocation conditional upon a finding of infringement is an 'inter-procedural' condition.

2. Whether a condition is 'intra-procedural' in the strict sense or 'inter-procedural' is relevant for the question of whether a cross-appeal may be lodged, which is possible if the condition is intra-procedural in the strict sense, or a separate appeal must be lodged, which is the case if the condition is inter-procedural.

3. Whether the condition of a finding of infringement must be considered intra-procedural or inter-procedural has no relevance for the question of whether making a counterclaim conditional upon a finding of infringement is permissible. Nothing in the UPCA or Rules of Procedure suggests that this is excluded per se.

4. Where a counterclaim for revocation is made conditional upon a finding of infringement, the claims remain unchanged but are limited in terms of need for adjudication. It does not mean that the entire counterclaim for revocation action as such is made conditional upon a finding of infringement in the sense that it would not be pending as long and/or as soon as the condition is not fulfilled. R. 263.3 RoP applies by analogy (see clarification order of 16 July 2026 in UPC-CoA-40/2026).

5. Where a counterclaim for revocation is made conditional upon a finding of infringement by 'the Court', in the absence of an explicit indication by a party to the contrary (e.g. by explicitly referring to 'the Court of First Instance'), 'the Court' must be understood as to refer to both the Court of First Instance and the Court of Appeal. Consequently, after a finding of non-infringement by the Court of First Instance, the conditional counterclaim is still 'pending' for the duration of the appeal period and the decision may be appealed from, after which it becomes pending before the Court of Appeal.

6. In R. 242.2(b) RoP the wording 'failed to decide' does not (only) refer to an

> *'omission attributable to the Court', but refers to any situation where something relevant for a decision on appeal was not decided upon at first instance, regardless of the reason therefor. There is no indication in R. 242.2(b) RoP and no reason to treat non-decided infringement and invalidity arguments differently."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 2 129 425

EMBOLIC PROTECTION DEVICE

KEYWORDS
- infringement action and the counterclaim fo...
- relevance of intra-procedural and inter-proc...
- application of R. 263.3 by analogy
- meaning of 'the Court'
- meaning of 'failed to decide' in R. 242.2(b) ...

Rule 263 Leave to change claim or amend case

SUMMARY
The Court of Appeal in Luxembourg issued a decision on a counterclaim for revocation. The patent at issue relates to an embolic protection device. According to the headnotes of the decision, infringement actions and counterclaims for revocation are treated as separate proceedings under the UPC framework, meaning that conditioning a revocation counterclaim on a finding of infringement creates what is termed an "inter-procedural" condition. The distinction between intra-procedural and inter-procedural conditions affects how parties may appeal decisions, with inter-procedural conditions requiring separate appeals rather than cross-appeals. Making a counterclaim conditional upon a finding of infringement is permissible under the UPC rules and is not prohibited by the procedural framework. When a revocation counterclaim is made conditional on infringement, the counterclaim remains pending even though its scope for adjudication is limited, and the court applies the analogy of Rule 263.3 to determine when the condition must be assessed. Where the condition refers to "the Court" without further specification, this encompasses both the Court of First Instance and the Court of Appeal, so a conditional counterclaim continues to be pending during any appeal period following a non-infringement finding at first instance. Rule 242.2(b) on appealing matters that were "failed to decide" applies to any situation where relevant issues were not decided at first instance, regardless of the reason, with no distinction made between infringement and invalidity arguments.